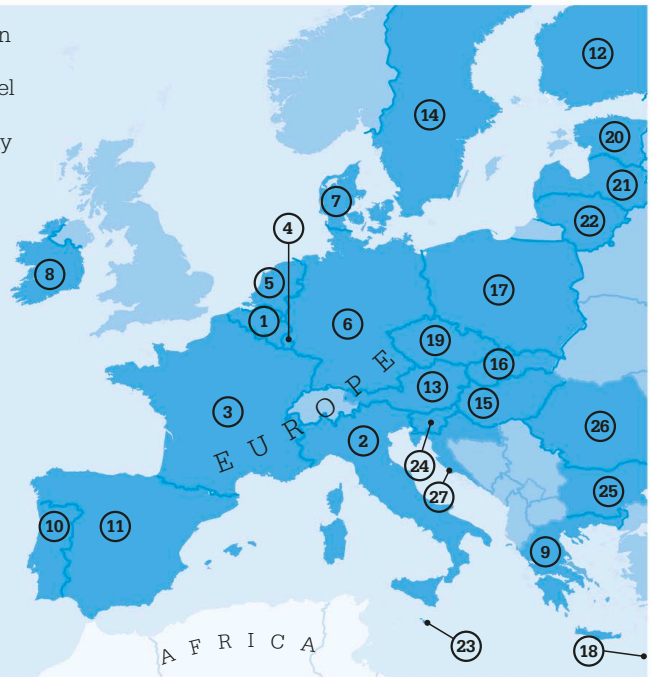


The European Court of Justice (ECJ) now has jurisdiction over the 27 states of the European Union. It was established in 1952 as the Court of Justice of the European Coal and Steel Community. In 1993, when the 12 nations of the European Communities created the European Union, the ECJ—formerly the court of just an economic union—became the supreme court of this political union.

List of countries:

- | | |
|-----------------------|---------------------------|
| 1. Belgium (1958) | 15. Hungary (2004) |
| 2. Italy (1958) | 16. Slovakia (2004) |
| 3. France (1958) | 17. Poland (2004) |
| 4. Luxembourg (1958) | 18. Cyprus (2004) |
| 5. Netherlands (1958) | 19. Czech Republic (2004) |
| 6. Germany (1958) | 20. Estonia (2004) |
| 7. Denmark (1973) | 21. Latvia (2004) |
| 8. Ireland (1973) | 22. Lithuania (2004) |
| 9. Greece (1981) | 23. Malta (2004) |
| 10. Portugal (1986) | 24. Slovenia (2004) |
| 11. Spain (1986) | 25. Bulgaria (2007) |
| 12. Finland (1995) | 26. Romania (2007) |
| 13. Austria (1995) | 27. Croatia (2013) |
| 14. Sweden (1995) | |

Key: EU member (since year shown)
 Non-EU country



able to review not just the legality of an HA decision, but also its policies—yet they were determined that this should be a matter between states. The Germans, however, advocated private access, while the French worried that if the court had the power to review policy, it would lead to undemocratic government by judges. A compromise was reached. The court would have the power to annul HA decisions that violated the terms and spirit of the Treaty of Paris, while the HA would avoid decisions that would disturb member countries.

Limitations on powers

When it became clear that the HA would be the executive of the ECSC, and the Court of Justice its judiciary, the French ensured the Court remained an administrative one. It would have powers to ensure the observation of ECSC law and to interpret the Treaty of Paris, but not the power of constitutional review

to examine policy. The new court was based in Luxembourg, with one judge from each of the six member states, plus a seventh from one of the three large countries—West Germany, France, and Italy—a position held in rotation. (Today, the European Court of Justice has 27 judges, one from each EU state.)

By the time the Treaty of Paris was signed in 1951, some of the enthusiasm for supranational bonds had already waned, and plans for a political union and a defense union were dropped. Yet the strong legal framework gave momentum to the European project.

The ECSC was overseen by four institutions: the HA, which was a nine-member executive; the Common Assembly, made up of 78 representatives appointed from the parliaments of the member states; the Special Council of Ministers, composed of representatives of national governments; and the Court of Justice. Modeled on the Council

of Europe, the Common Assembly was designed to provide democratic legitimacy; it first met in September 1952 in Strasbourg.

Three communities

Gradually, European politicians began to discuss the idea of a common market. The European Economic Community (EEC), also known as the Common Market, was formed by the six founding member states of the ECSC, under the Treaty Establishing the European Economic Community—commonly known as the Treaty of Rome. It was signed in 1957 and came into force on January 1, 1958.

The treaty also created a third community: the European Atomic Energy Community (EAEC), soon known as Euratom. Conceived to oversee the development of the European market for atomic energy, it now covers all aspects of nuclear power, including the safe disposal of nuclear materials. »